

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

Turning to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the invoices attached as Exhibit 5 to the declaration of Kimberli Zazzi. The court observes instances where the attorneys have insufficiently explained the work performed, instances where the work appears to be duplicative or unnecessary to the prosecution of the causes of action, instances of block billing, and instances where an excessive number of hours are billed for what should be relatively straight-forward tasks. The court determines that 29.8 hours are reasonable for Kimberli Zazzi and 3.6 hours are reasonable for LaDawna Fleckenstein.

The court also observes the invoice contains entries for “MG,” “AB,” and “MC.” However, nowhere in the notice of motion, memorandum of points and authorities, declarations by counsel, reply papers, or reply declaration does plaintiff or their counsel of record indicate who these individuals are, what their positions are, or what their billed rates are. To that end, the court determines none of the hours expended by these individuals are reasonable.

The court must next address whether the requests for \$500 per hour by Kimberli Zazzi and LaDawna Fleckenstein are reasonable. Determining the reasonable amount of attorneys’ fees is known as the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest (Serrano III)* (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.) Moreover, “[t]he court may apply a multiplier based on contingent risk, exceptional skill, or numerous other factors. [Citation.] There is no magic formula; any one factor may justify an enhancement.” (*Sonoma Land Trust v. Thompson* (2021) 63 Cal.App.5th 978, 986.)

The court has carefully reviewed the declaration of counsel and finds the hourly rate of \$350 per hour by Kimberli Zazzi and LaDawna Fleckenstein are reasonable for similar legal services within Placer County. The court declines to issue a multiplier.

Accordingly, plaintiff’s motion is granted in the reduced amount of \$11,690 for attorney’s fees and \$882.77 for costs for a total amount of \$12,572.77.

17. S-CV-0055656 ALIZADEH, KOBRA v. BARRETT DAFFIN FRAPPIER

At the direction of the Presiding Judge, the motion to expunge lis pendens is dropped from calendar in light of the notice of withdrawal of motion filed June 23, 2026.